

The complaint

Miss N is unhappy that Fairmead Insurance Limited (Fairmead) declined her claim for storm damage.

What happened

Miss N had buildings and contents insurance with Fairmead. In the summer of 2021, she made a claim under her policy for storm damage after she noticed her outhouse roof was sagging. Fairmead declined the claim because there hadn't been any storm conditions around that time. Miss N said the sagging had become worse following earlier storms and she asked Fairmead to investigate.

Fairmead's contractor reported that the roof timbers were too small to carry the weight of the roof. Fairmead declined Miss N's claim because it concluded the damage was due to poor workmanship.

Miss N's own roofer reported that the roof had sagged because it had settled and storm conditions had started to lift the covering. But Fairmead remained of the opinion that a storm hadn't caused the damage.

Our investigator didn't think Fairmead had done anything wrong. She found that there had been a storm a month before Miss N made her claim, but our investigator didn't think a storm had caused the roof to sag.

Miss N disagreed. She said Fairmead hadn't explained how the timbers were "too small" to support the weight of the roof, so she thought it should offer a compromise.

The complaint was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

While I realise Miss N will be disappointed, I've decided not to uphold her complaint. I'll explain why.

When making a claim, it's Miss N's responsibility to show that an insured event has happened. If Fairmead declines the claim, it is responsible for showing why the policy allows it to decline. My role is to decide whether Fairmead declined Miss N's claim fairly, in line with the policy and for the reasons it gave.

I've looked at the photos provided and I can see that Miss N's flat, outhouse roof was holding rainwater. When looking at a storm damage claim, I consider three things:

- Was there a storm?
- Was the damage typical of that caused by a storm?
- Was the storm the only or main cause of the damage?

Was there a storm?

Fairmead initially declined Miss N's claim because there was no evidence of storm conditions around the time she made her claim. However, Miss N said it was poor weather conditions leading up to her claim which caused the roof damage. In the month before Miss N's claim, I can see that there were strong winds meeting the definition of a storm, so I'll move onto the next consideration.

Was the damage typical of that caused by a storm?

Damage typically caused by strong winds might be broken tiles or lifted roof coverings. Here, the photos show that Miss N's roof has sagged allowing rainwater to pool. Looking at her roofer's report, I can see that storm damage is cited as a possible cause:

Some of the fibre glass and resin is peeling up from the roof boards, it seems to have been caught by strong winds, possibly after the last storm.

While peeling resin isn't necessarily typical of storm damage, Fairmead didn't decline Miss N's claim for that reason. So, I'll move on to the final consideration.

Was the storm the only or main cause of the damage?

Fairmead declined Miss N's claim because "the roof timbers are too small [and] unable to support the weight of the roof and some rainfall...this is a workmanship issue". The policy states:

Under this policy, we will not pay for:

12. Defects and faults:

Any direct loss or damage arising from defective design, defective materials, faulty materials, faulty workmanship or failure to follow manufacturers' instructions.

But, Miss N said professionals told her the roof had been constructed with adequate timbers. I've looked at the two reports Miss N's roofer supplied, which say the following:

Upon inspection the flat roof has settled causing a dip which is retaining water after heavy rain fall. Some of the fibre glass and resin is peeling up from the roof boards, it seems to have been caught by strong winds, possibly after the last storm. I recommend fitting a new sub roof over the existing roof but creating a better pitch for waterflow.

And,

Upon further inspection...we found that the original fibre glass roof was leaking and blistering due to the recent bad weather last month and therefore more work was needed to rectify the issue.

Work undertaken:

Built lightweight wooden frame on top of original flat, fibre glass roof

While the roofer says the peeling resin "seems to have been caught by strong winds", the report doesn't say that storms *caused* the resin to peel. Rather, the reports say the roof settled, *causing* a dip in which water pooled. So, even if I disregard Fairmead's report, I'm not persuaded that Miss N's roof was storm damaged. That's because her roofer hasn't stated conclusively, or even implied, that a storm caused the roof to settle, collect water, sag and peel.

Fairmead declined Miss N's claim because it said the roof damage was due to poor workmanship. I note that her roofer's remedy was to build a new roof over the existing roof allowing for better water flow. This implies the original roof wasn't of an appropriate

standard, and if the water had been pooling for some time, as Miss N says, then the damage is more likely to have been caused by the retained water rather than a storm.

So, in response to this consideration, I can't fairly say the damage was caused mainly or wholly by a storm.

In summary, I'm satisfied that Fairmead declined Miss N's claim fairly, for the reason it gave, and in line with the policy. That's because the evidence doesn't support her view that a storm caused the roof damage. Therefore, I see no reason for Fairmead to reconsider the claim.

my final decision

For the reasons given above, my final decision is that I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Miss N to accept or reject my decision before 7 February 2022.

Debra Vaughan
Ombudsman